Overcoming Deepfake Porn Crimes In Indonesia

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Abstract

The research aims to look at dealing with deepfake porn crimes in Indonesia. The method used in normative legal research with the data sources used is primary, secondary, and tertiary legal materials to support the research. Research results show that in Indonesia, there are no regulations that specifically and comprehensively regulate the misuse of AI in the form of deepfake porn. Based on the many types of crimes committed by deepfake porn perpetrators in the process of making deepfake porn videos, the legal provisions that can be applied to these crimes also vary. The rise of deepfake porn in Indonesia, which is spread on the internet, is causing harm to other people. Therefore, serious countermeasures are needed from various parties, including law enforcement officials who have made efforts to combat deepfake porn crimes on the internet. Countermeasures against deepfake porn crimes consist of implementing preventive efforts in the form of outreach to the public and taking firm action against perpetrators of crimes. deepfake porn invites the public to play an active role in reporting deepfake porn crimes, preventing the spread of deepfake porn videos on the internet, and implementing repressive efforts in the form of actions taken by law enforcement officials such as conducting inquiries, investigations, prosecutions and examinations in court.

I. Introduction

The communication and information media technology systems industry continues to experience significant development. Information and communication technology development has provided freedom and convenience for users to access and obtain information in any form and whenever needed (Utama et al., 2023a). However, apart from being easy to do anywhere, the speed and accuracy of information obtained through accessing this information makes it easier for someone to do prohibited things that violate the law (Utawi & Ruhaeni, 2023a).

So far, hoax videos/photos have often been carried out using videos/photos that do

not correspond to the real place and time. With technological developments, video manipulation has become possible, which can manipulate speech or scenes that appear to be made by someone so that they seem genuine videos. Of course, special abilities are needed to manipulate a video, but it is different if an application allows this (Noval, 2019).

Artificial intelligence (AI) is evidence of technological developments in the digital era that can positively impact various aspects of life. Artificial intelligence (AI) has the advantage of being able to replace jobs carried out by humans. Artificial intelligence (AI) development has led to a certain algorithm called deepfake technology. South Korea uses deepfake technology in the world of television to replace the existence of a news announcer. This technology creates a perfect copy of a newscaster's voice, facial expressions, and body movements, thereby minimizing face-to-face conditions in office areas (Kasita, 2022a).

Recently, deepfakes generated by deep learning algorithms have attracted widespread attention. Deepfake technology can be used to perform facial manipulation with high realism. However, deepfake technology has now been imitated and misused by irresponsible individuals who manipulate images or videos using other people's faces. So far, there have been many deepfake videos circulating on the internet, most of which target celebrities or politicians. These videos often damage celebrity reputations and guide public opinion, seriously threatening social stability (Yu et al., 2021, p. 607).

The development of crime with the use of deepfake application technology has given rise to crimes in the form of fake pornographic video content, known as deepfake porn. Deepfake porn is defined as a new form of video technology used to harm women online. Videos are created using face-swapping applications or software to transfer the victim's face onto another person's body in a pornographic video, thereby giving the false (but realistic) impression that the victim is engaging in a sexual act. These videos are created and shared without the victim's consent. 96% of all deepfake videos are pornographic, and all of them target women. Despite the increasing popularity of deepfake porn and its negative impacts, many people are still unaware of the existence of this technology. This includes victim services providers, law enforcement, judges, lawmakers, and even victims. This means that victims may not be believed (and experience trauma again) when they say that they are not the person in the deepfake porn video (Samosir, 2023).

The following are various cases of deepfake porn that have occurred in Indonesia, namely cases involving the distribution of pornographic videos involving the name of a famous public figure, Nagita Slavina. The video showing the face of public figure Nagita Slavina has been widely spread on social media since January 7, 2022. The short video showing the indecent scene has been reported to the police and has been examined and confirmed that the video is the result of engineering by irresponsible individuals. Another example also happened to a well-known public figure, Syahrini. The video, which has been widely spread since May 12, 2020, on social media, is a pornographic video edited using the face of this public figure. The perpetrator of the spread of the hoax video was a woman with the initials MS, who was arrested by the police in Kediri, East Java. The faces of the two case examples above result from editing and combining several photos to resemble the public figures Nagita Slavina and Syahrini. This deepfake technology can change faces and audio, movements, and visual details identical to the victim. Therefore,

it cannot be denied that this could mislead the general public in responding to this hoax video. The impact would be very bad if deepfake technology were used to manipulate images or videos using the faces of well-known figures or public figures because the reputation and good name of the public figure could be tarnished and result in the perpetrator being charged as a cybercriminal as well as a perpetrator of defamation. Suppose the perpetrator distributes images or videos previously manipulated by deepfake technology. In that case, this is the same as the perpetrator spreading hoax news because it involves manipulating and deceiving many of the general public with untrue news (Utawi & Ruhaeni, 2023b).

The emergence of deepfake porn from well-known figures can have a real impact on social conditions in society, starting from hate speech, conflict, disintegration, increasingly accommodated intolerance, and even criminal acts. As time goes by and this technology becomes more sophisticated, the spread of hoaxes, fake news, and deepfake-based Pornography is increasingly common. The easy distribution of these videos via social media threatens the privacy of someone who does not even participate in using them (Cahya, 2019). The use of someone's image in a pornographic context (without prior consent from the person concerned) on the internet is an increasingly widespread violation. Unlawful activities using generated images and artificial intelligence are a variant of this phenomenon. "Deepfake Porn" illustrates the inability of the legal system to deal with rapidly changing realities (Mania, 2022). Deepfake porn perpetrators, in carrying out their actions, will steal the authority of the victim's body by engineering the victim to do something the perpetrator wants without the victim's permission or even knowledge. The perpetrator acts as if he has complete control over the victim in cyberspace. This is included in criminal acts, where the perpetrator commits several crimes at once when making deepfake porn (Kasita, 2022b). In Deepfake itself, there are several provisions related to the misuse of this application, including the Criminal Code (KUHP), Law Number 19 of 2016 concerning Amendments to Law Number 11 of 2008 concerning Information and Electronic Transactions. and Law Number 44 of 2008 concerning Pornography.

So far, justice in the law has been upheld if the rules of law sanction the perpetrator of a crime/criminal offender. In the end, the misfortune or suffering of victims, especially women, admit that they have been satisfied, paid, or recovered by the perpetrator by going through and receiving a punishment process, but each time it is carefully thought about, the substance or instrument for resolving violations through legal channels which have been done so far. Has no benefit for the recovery of the victim's misery (Salmon, 2023). Based on the explanation above, it is clear that the negative impacts of deepfake porn in Indonesia are increasingly visible (Jin et al., 2023, p. 1). However, little is known about how to deal with it. So the author is interested in researching overcoming the crime of fake pornography (deepfake porn) in Indonesia. As well as examining in more depth the legal provisions regarding deepfake porn crimes in Indonesia, efforts to overcome deepfake porn crimes so far, and future concepts in deepfake porn in Indonesia.

2. Research Method

The type of research used in this research is normative legal research. Normative

legal research is also called doctrinal legal research. In normative research, law is often conceptualized as what is written in statutory regulations (Efendi & Ibrahim, 2016). This research is normative because it seeks to establish law as a system of norms built on and related to principles, standards, rules of statutory regulations, court decisions, agreements, and doctrines (teachings) (Mukti et al., 2019). Apart from that, the reason that makes this research normative is that research takes a lot and uses secondary data sources, mostly from library materials (Soemitro, 1983).

Regarding data sources and legal materials, this research will use primary, secondary, and tertiary legal materials to support the research. This includes statutory regulations, scientific books, journals, internet articles, dictionaries, and encyclopedias relevant to research. Data collection techniques will involve a literature study, a legal materials search, and interviews with various related institutions. After data collection, data analysis will be done using prescriptive analysis techniques to provide arguments and prescriptions based on the research results. This allows a more in-depth assessment of the problem under study and determining what is correct and inappropriate from a legal point of view.

3. Results and Discussion

Recent technological advances have made it easier to create what are now called "deepfakes," hyper-realistic videos using facial swaps that leave little trace of manipulation (Chawla, 2019). Deepfakes are artificial intelligence (AI) application products that combine, combine, replace, and overlay images and video clips to create fake videos that appear genuine (Maras et al., 2019a). Deepfake technology can produce, for example, funny videos, Pornography, or politics that depict a person saying anything without the consent of the person whose image and voice are involved (Day, 2019). The determining factor of a deepfake is the scope, scale, and sophistication of the technology used, as almost anyone with a computer can create a fake video that is virtually indistinguishable from genuine media (Fletcher, 2018). Although early examples of deepfakes focused on political leaders, actresses, comedians, and entertainers whose faces were inserted into pornographic videos(Hasan et al., 2019) deepfakes in the future will likely be increasingly used for revenge pornography, intimidation, and fake pornographic videos (deepfake porn), evidence in court, political sabotage, terrorist propaganda, blackmail, market manipulation, and fake news (Maras et al., 2019b).

Deepfake porn is an illegal act of doctoring images and videos. Deepfake porn crimes can be grouped as online-based gender violence, which can cause psychological harm, social isolation, economic loss, and limited mobility for victims whose faces are exploited by deepfake porn masterminds (Pawestri, 2023). Deepfake porn uses the help of artificial intelligence (AI) to create fake pornographic content by replacing a person's face in the content with another person's face. This phenomenon violates privacy laws because it takes photos of others without permission and uses them for inappropriate things (Safitri, 2023).

Deepfake porn can also be used to create fake pornographic videos of famous figures or celebrities, which can damage their reputation and cause unforeseen damage. This can also cause legal and security problems because fake videos can spread widely on the internet and are difficult to remove and become a serious problem in the porn

industry and also in the general public. Many people have become victims of deepfake porn, where their faces are used in pornographic videos without permission.

Legal Provisions Regarding Deepfake Porn Crimes in Indonesia

Like many technologies of the past, Pornography has now become the driving force behind the devastating deepfake phenomenon. Despite the limitations of participant consent, AI-based image and audio exchange technology allows people to create and commission the production of designer pornographic videos. Everyone can choose their stars, and studs-Hollywood actresses, prominent politicians, and the neighborhood guy or gal are all fair game (Kikerpill, 2020). Deepfake may refer to algorithmically synthesized material in which a person's face is superimposed onto another body. To date, most deepfakes found on the internet are pornographic, and the people depicted in them rarely consent to their creation and publication. Deepfake makes anyone active in cyberspace vulnerable to becoming a victim (Karasavva & Aalia, 2021).

Crimes using deepfake application technology give rise to crimes in the form of fake pornographic video content, known as deepfake porn. Fake pornographic videos (deep fake porn) are made using face-swapping applications or software to move the victim's face onto another person's body in a pornographic video, thereby giving a false impression that the victim is performing a sexual act (Samosir, 2023). In Indonesia, there is no specific law that regulates the use of AI technology in creating deepfakes containing pornographic content, which content could be considered unlawful or disturbing public order. In Indonesia, several laws regulate Pornography, such as regulations that can be applied regarding electronic information, Pornography, and defamation (Utama et al., 2023c). In carrying out their actions, deepfake porn perpetrators will steal the authority of the victim's body by engineering the victim to do what they want without the victim's permission or knowledge. The perpetrator acts like he has total power over the victim online. This is included in criminal offenses where the perpetrator commits several crimes at once when making deepfake porn videos (Kasita, 2022), such as stealing personal data, distributing information in a way that violates decency, and manipulating or falsifying data.

Based on the many types of crimes committed by deepfake porn perpetrators in the process of making deepfake porn videos, the legal provisions that can be applied to these crimes also vary. Although there are no legal provisions that specifically regulate deepfake porn crimes in Indonesia, there are several laws that can be used to trap perpetrators of deepfake porn crimes, such as those listed in the Information and Electronic Transactions Law, the Personal Data Protection Law, the Pornography Law, and Law No.1 of 2023 concerning the new Criminal Code. The following is an explanation of each:

Law Number 1 of 2024 concerning Second Amendment to Law Number 11 of 2008 concerning Electronic Information and Transactions

Currently, Indonesia still does not have legislation that comprehensively and specifically regulates AI technology that is misused to carry out deepfake porn. However, misuse of deep fake technology can be considered cybercrime because the resulting photo or video content is spread via the internet. Apart from that, Pornography has been

regulated in several laws and regulations in Indonesia, such as the provisions of laws and rules that can be used about electronic information, morality, Pornography, and defamation. So, in deepfake cases that disseminate fake photo or video edited content, they will be subject to the ITE Law as it is considered lex specialis or a special law that specifically regulates issues related to electronic transactions, including the dissemination of deepfake content that involves Pornography, harassment or defamation.

AI is similar to the "electronic agent" regulated in the ITE Law and its amendments. According to Article 1 number 8 of Law 19/2016, an electronic agent is a device from an electronic system created to act on certain electronic information automatically, which is organized by a person (RI, 2016). The word "automatic" in this article means working alone. Artificial intelligence technology can also be interpreted as a computer-based processing system that can think and make decisions independently. Therefore, the features of artificial intelligence technology can be likened to electronic agents themselves (Faathurrahman & Priowirjanto, 2022). Thus, deepfake porn as an abuse of AI is one of the prohibited acts based on Article 27 paragraph (1) of Law 1/2024 concerning the second amendment to the ITE Law, which reads: "Every person intentionally and without the right to broadcast, perform, distribute, transmit, and make accessible Electronic Information and Electronic Documents which have content that violates decency to be known to the public."

From the sound of Article 27 paragraph (1) of Law 1/2024, there are several explanations of the elements of the article as follows:

a. "Broadcasting" includes the act of transmitting, distributing, and making accessible electronic information and documents in an electronic system.
b. "Distribute" is to transmit and disseminate information and electronic documents to many people or various parties through an electronic system.
c. "Transmitting" means sending information and documents via electronic mail to other parties via an electronic system.
d. "Making accessible" is anything other than distributing and transmitting via an electronic system, which causes electronic information and documents to become known to other parties or the public.
e. "Violating morality" is committing an act of displaying nudity, genitals, and sexual activities that are contrary to the values that exist in society in the place and time of the act; the interpretation of the meaning of decency is adjusted to the standards that apply to society in a certain time and place (contemporary community standards).
f. "Publicly known" is to be accessible to a large group of people, most of whom do not know each other. Then, people who violate the provisions of Article 27 paragraph (1) of Law 1/2024 are threatened with imprisonment for a maximum of 6 years and a fine of up to IDR 1 billion, as regulated in Article 45 paragraph (1) of Law 1/2024.

Additionally, legal regulations prohibit the modification or production of electronic data to appear authentic. The act of someone altering an image, for example, changing the

image of a clothed person to a nude person as if it were a true image, violates the law. Every person intentionally and without right or against the law manipulates, creates, changes, deletes, and destroys Electronic Information and Electronic Documents with the aim that the Electronic Information and Electronic Documents are considered as if they are authentic data (Republik Indonesia, 2008).

The perpetrator will face a prison sentence of at least twelve years and a fine of at least twelve billion rupiah. "Every person who meets the requirements stated in article 35 will be punished with imprisonment for not more than 12 (twelve) years and a fine of not more than 12,000,000,000.00 (twelve billion rupiah)." This statement is by Article 51 of Law Number 11 of 2008 concerning Information and Electronic Transactions.

Law Number 27 of 2022 concerning Personal Data Protection

Deepfake technology manipulates images or videos using other people's faces in their creations. For information, facial images are included in specific biometric data. Article 66 of Law No. 27 of 2022 concerning Personal Data Protection states, "Everyone is prohibited from creating false personal data or falsifying personal data to benefit themselves or others which could result in harm to others." Article 68 of Law Number 27 of 2022 concerning the Protection of Personal Data reads, "Everyone who deliberately creates false Personal Data or falsifies Personal Data to benefit themselves or other people which could result in harm to other people as intended in Article 66 shall be sentenced to a maximum imprisonment of 6 (six) years and a maximum fine of Rp. 6,000,000,000.00 (six billion rupiah)." (Undang-Undang Nomor 27 Tahun 2022 Tentang Perlindungan Data Pribadi, 2022)

Law Number 44 of 2008 concerning Pornography

When referring to Law number 44 of 2008 concerning Pornography, the misuse of the depfake application in making deepfake porn is included in the elements regulated in Article 1 number 1 of the Pornography Law, namely "Pornography is images, sketches, illustrations, photos, writing, sound, sounds, moving images, animations, cartoons, conversations, gestures, or other forms of messages through various forms of communication media and public performances, which contain obscenity or sexual exploitation that violates the norms of decency in society." Article 4 paragraph (1) of Law Number 44 of 2008 concerning Pornography in Indonesia states that every person is prohibited from producing, making, reproducing, duplicating, distributing, broadcasting, importing, exporting, offering, buying and selling, renting, or providing Pornography that explicitly contains:

a. sexual intercourse, including deviant sexual intercourse;

b. sexual violence;

c. masturbation or masturbation;

d. nudity or display of nudity;

e. genitals; or

f. child pornography

Then, perpetrators who violate the prohibition in Article 4 paragraph (1) of the Pornography Law can be punished with imprisonment for a minimum of 6 months and a

maximum of 12 years, a fine of at least IDR 250 million, and a maximum of IDR 6 billion, as regulated in Article 29 of the Law. Pornography.

Law No. 1 of 2023

Apart from being regulated in several of the laws above, deepfakes containing Pornography are also regulated in Article 407 of Law 1/2023 concerning the new Criminal Code, which will come into effect 3 years from promulgation, namely in 2026. The following is the text of Article 407 of Law 1/2023: "Any person who produces, creates, reproduces, duplicates, distributes, broadcasts, imports, exports, offers, sells, rents or provides pornography shall be punished with imprisonment for a minimum of 6 (six) months and a maximum imprisonment of 10 (ten) years or a fine of at least category IV, namely IDR 200 million and a maximum fine of category VI, namely IDR 2 billion" (Presiden Republik Indonesia, 2023). Considering that deepfake porn is a violation of pornography law, logically, this is also related to the Criminal Code, which regulates pornography offenses in Indonesia. Pornography is included in the classification of illegal acts that violate moral ethics by Part Fourteen regarding Acts Violating Morality in the Criminal Code, which provides for Articles 281 to 283 of the Criminal Code.

In addition, Article 282 of the Criminal Code does not explicitly limit morality. In his statement, he said that judgments about obscene behavior or norms of modesty should depend on public opinion and local customs. This shows that there are no definite boundaries when it comes to Pornography or obscene acts themselves; what binds is only the social context and developments that have occurred. As a result, the Criminal Code's unclear boundaries regarding Pornography can be interpreted in various ways.

In the theory of "law as a tool of social engineering" expressed by Professor Mochtar Kusumaatmadja, the law must act as a social engineering tool. The law must be "at the forefront" in creating a good socio-technological climate. Stakeholders will then follow the path that the regulation has designed. One of the crucial roles of regulation is providing information on how AI can be considered a legal entity responsible for its actions. This equal treatment of AI as a legal subject will make it easier to control and enforce the law if violations occur. Therefore, the role of regulators is very important to protect people's rights and create a climate that supports the development of AI technology. The urgency of making laws that specifically regulate AI is an urgent matter. Apart from protecting victims of deepfake porn crimes, this special legal need is also because it allows various other crimes to emerge as technology becomes increasingly sophisticated, and there are no limits to its development.

Efforts to combat deepfake porn crimes

The rise of deepfake porn in Indonesia, which is spread on the internet, is causing moral damage to society. Therefore, serious countermeasures are needed from various parties, including law enforcement officials who have made efforts to counter the crime of deep fake porn on the internet, countermeasures against the crime of counterfeit Pornography in the media, including:

Preventive Efforts

Preventive efforts are a continuation of previous prevention efforts, which focused on preventing crimes from occurring. The preventive efforts emphasized are eliminating

opportunities to commit crimes. Helping prevent crime is better than assisting criminals to become better. According to the motto of criminology, efforts to correct criminals must be considered and directed so that crimes do not occur again. Preventive crime prevention is usually carried out through two approaches: moralistic methods and abolitionistic methods. Moralism is carried out through spiritual and mental improvement, which can be carried out by scholars, teachers, and other people. In contrast, an abolitionistic approach is a conceptual approach to coping that must be planned based on criminological research and explore the reasons for various correlated variables. Combining multiple elements related to criminal justice mechanisms and community participation is the most commonly used method.

In this effort, the police carry out legal education related to deepfake porn crimes and provide lessons on legal regulations related to crimes. This can minimize the number of perpetrators who commit crimes. Apart from that, the police also educate the public about actions that can cause crime. Based on an interview with the Ditreskrimsus Polda DIY, the countermeasures taken to deal with deep fake porn crimes in Indonesia include:

Based on interviews with (Ditreskrimsus et al., 2024), countermeasures taken to deal with deep fake porn crimes in Indonesia include:

1) *Socialization to the community*
   Continuously providing outreach to the public about what deepfake porn crimes are and what is considered to be categorized as breaking the law and socializing the threats of punishment if committing deepfake porn crimes as well as the sentences handed down by judges for deepfake porn crimes so that the public understands what deepfake porn crimes are. Law enforcement efforts are carried out by law enforcement officials if there is a problem with deepfake porn or something similar.
2) *Take firm action against perpetrators of deep fake porn crimes*
   Take firm action against perpetrators of deepfake porn to act as a deterrent to the public so that they do not commit this crime.
3) Invite the public to play an active role in reporting deep fake porn crimes.
   Community participation is very much needed in eradicating deepfake porn crimes in Indonesia. Because the public is more aware of every crime that occurs in society, this aims to ensure that all levels of society participate in efforts to overcome serious fake porn crimes in Indonesia (ibu Yulisa, 2024a).
4) *Prevent the spread of deepfake porn videos on the internet.*
   To prevent the spread of deepfake porn videos on social media, the police and witness and victim protection agencies, as well as the women's empowerment, child protection, and population control services, filed complaints about sites containing deepfake porn video content in Indonesia to the Ministry of Communication and Information (ibu Yulisa, 2024b).

Repressive Efforts

Repressive efforts are the final step that must be taken because they aim to provide a deterrent effect to everyone who commits a crime so that they do not repeat it.

If the enforcement efforts carried out by law enforcement go well, it is hoped that further crimes will be stopped and dealt with. This effort is carried out when a crime occurs, and the action takes the form of law enforcement by imposing punishment. Prevention is carried out by taking action against criminals according to their actions and teaching them that their actions violate the law and are detrimental to society. Apart from that, this effort can be followed by firm action from law enforcement, especially the police, physically and by using firearms in urgent situations (ditreskrimsus polda diy, 2024).

Repressive actions carried out by law enforcement officials are:

a) Conduct an investigation

b) Investigation

c) Prosecution

d) Examination before the court

Future concepts for overcoming deep fake porn crimes in Indonesia

Talking about future concepts in dealing with deepfake porn in Indonesia cannot be separated from the applicable laws and what obstacles there are so that the fight against deepfake porn crimes in Indonesia is not running optimally. The crime of deepfake porn is a crime in the form of fake pornographic video content. Videos are created using face-swapping applications or software. Even though the popularity of phony pornography crimes is increasing and its negative impacts, many people are still unaware of the existence of this deepfake technology. To be able to overcome the crime of deep fake porn in Indonesia, the suggestions given for future mitigation efforts are as follows:

Empowering the role of the community and Law Enforcement Mechanisms in efforts to overcome deep fake porn crimes

Sometimes, the public knows that a crime has occurred, but in this case, the public is passive and does not dare to report the crime. For this reason, efforts are needed to maximize the role of society in solving the problem of deepfake porn crimes in Indonesia. To be able to provide awareness to the public about the importance of community participation in overcoming crime, it is necessary to provide legal information to the public about what a deepfake porn crime is, what activities are categorized as breaking the law, and socialize the threats of punishment if committing a deepfake porn crime as well as the sentence handed down by the judge. Regarding the crime of deepfake porn so that the public understands what the crime of deepfake porn is. With legal socialization, it is hoped that public awareness of legal control will improve to be active in crime prevention efforts.

In the digital era, the active role of society and law enforcement mechanisms is very important in overcoming and stopping deepfake perpetrators. To combat deepfake porn, which is the manipulation of images and videos to create fake pornographic content, the active role of society is very important in law enforcement efforts. Law enforcement can deter perpetrators and teach others not to behave similarly. With the active role of the community and strengthened law enforcement mechanisms, the countermeasures undertaken will be more effective in helping prevent and overcome deepfake porn crimes in Indonesia.

Regulatory Instruments to Take Action Against Perpetrators of Deepfake Porn Cases and Their Effectiveness in Existing Laws

Currently, Indonesia does not have a comprehensive and specific law that regulates the use of AI technology to create deepfakes containing pornographic content. This is because distributing photos or videos via the internet is considered a criminal act in cyberspace or cybercrime, and its parent is cyberspace. Cyberspace is considered a world of computer-based communication, and it is considered a new reality in human life, known as the internet, in everyday language. Deepfakes are classified as a form of cybercrime. Because it is very clear that deepfakes are a form of illegal content that can be considered to violate the law or disturb public order (Utama et al., 2023b). Special laws are needed in Indonesia to regulate telecommunications that use artificial intelligence technology. These laws will be critical to regulating the use of artificial intelligence technology, especially in times of massive disruption. Using highly advanced monitoring systems and deepfake detection tools, ensuring the responsible and ethical use of AI technology is critical.

To ensure the use of AI is fair and safe and respects privacy, regulations and ethical standards must also be considered when developing it. In addition to creating laws, it is crucial to educate users about AI so they can understand the effects and dangers of this technology. This will help society use AI technology more wisely and responsibly. Victims of deepfake porn must be properly protected, including robust tools to report and address the impact of fake photos or videos that damage their reputation. Investment in research and development of more sophisticated technology is needed to combat the deepfake threat, although the technology to identify deepfakes continues to develop.

4. Conclusion

In Indonesia, there are no regulations that specifically and comprehensively regulate the misuse of AI in the form of deepfake porn. Based on the many types of crimes committed by deepfake porn perpetrators in the process of making deepfake porn videos, the legal provisions that can be applied to these crimes also vary. Even though there are no legal provisions that specifically regulate deepfake porn crimes in Indonesia, there are several laws that can be used to ensnare perpetrators of deepfake porn crimes, such as Law Number 1 of 2024 concerning the Second Amendment to Law Number 11 of 2024. 2008 concerning Information and Electronic Transactions, Law Number 27 of 2022 concerning Protection of Personal Data, Law Number 44 of 2008 concerning Pornography, Law No. 12 of 2022 concerning Crimes of Sexual Violence, or Law No. 1 of 2023 regarding the new Criminal Code.

The rise of deepfake porn in Indonesia, which is spread on the internet, is causing harm to other people. Therefore, serious countermeasures are needed from various parties, including law enforcement officials who have made efforts to combat deepfake porn crimes on the internet. Countermeasures against deepfake porn crimes consist of implementing preventive efforts in the form of outreach to the public and taking firm action against perpetrators of crimes. deepfake porn invites the public to play an active role in reporting deepfake porn crimes, preventing the spread of deepfake porn videos on the internet, and implementing repressive efforts in the form of actions taken by law

enforcement officials such as conducting inquiries, investigations, prosecutions and examinations in court.

Future concepts in dealing with deepfake porn in Indonesia cannot be separated from the applicable laws and any obstacles that occur, so the fight against deepfake porn crimes in Indonesia is not running optimally. To be able to overcome deepfake porn crimes in Indonesia, the suggestions given for future prevention efforts are: empowering the role of society and law enforcement mechanisms in efforts to overcome deepfake porn and regulatory instruments to take action against the perpetrators of deepfake porn cases and the effectiveness of existing laws.

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